

Chicago Tribune



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BREAKING NEWS AT CHICAGOTRIBUNE.COM

OPERATION MIDWAY BLITZ

Ruling gives new look at fed actions

Judge describes use of tear gas, agent using ChatGPT for report

By Jason Meisner and Madeline Buckley
Chicago Tribune

A federal judge on Thursday issued a scathing opinion that takes a deep dive into the use of force by immigration agents during Operation Midway Blitz, revealing new information gleaned from body-worn cameras and other evidence showing how agents used tear gas and flash-bang grenades on fleeing protesters, shot a praying minister in the face with pepper balls and even used ChatGPT to help write a report.

The 233-page written ruling by U.S. District Judge Sara Ellis, which memorializes her findings in issuing a preliminary injunction earlier this month, takes readers methodically through many of the high-profile melees between immigration agents and protesters during the two-month operation, including incidents in Albany Park, Old Irving Park, Evanston and the East Side.

Ellis wrote in the opinion that, over and over, body-worn camera footage from the agents undermined what was eventually put in their use-of-force reports, rendering their statements unreliable.

The reports also misidentified “neighborhood moms and dads, Chicago Bears fans, people dressed in Halloween costumes, and the lawyer who lives on the block” as professional agitators, Ellis wrote, while the body cameras at times captured the agents’ apparent glee in deploying tear gas and other munitions on residential streets.

“Just start throwing s—,” one agent told another during an incident on the East Side in October, according to Ellis’ report.

The judge also revealed for the first time that one body-worn camera video captured an immigration agent using the AI tool ChatGPT to “compile a narra-

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Marimar Martinez speaks at the Dirksen U.S. Courthouse in Chicago on Thursday after federal prosecutors abruptly moved to dismiss all charges against her. **TERRENCE ANTONIO JAMES/CHICAGO TRIBUNE**

Case dismissed against woman shot by agent

Charges latest to disintegrate against protesters amid controversy over bragging texts

By Jason Meisner and Caroline Kubzansky
Chicago Tribune

A federal judge on Thursday dismissed charges against a woman shot by a Border Patrol agent after she allegedly rammed his vehicle in Brighton Park last month, marking a striking conclusion to one of the most controversial cases to emerge from Operation Midway Blitz.

U.S. District Judge Georgia Alexakis granted a government motion to dismiss the case in a seven-minute hearing. The charges were dismissed with prejudice, so they cannot be refiled.

IN CHICAGOLAND: Federal appeals court temporarily halts release of hundreds of Operation Midway Blitz detainees. **Page 4**

Assistant U.S. Attorney Ron DeWald said prosecutors were not seeking “any tactical advantage” in asking to set the case aside. Earlier in the day they had abruptly moved to dismiss the assault charges against Marimar Martinez and her co-defendant, Anthony Ruiz.

The Ruiz family filed out of the courtroom and let out a small “woo!” in the hallway before a court marshal hushed them.

Ruiz’s mother Elizabeth wept as she accepted a hug.

The U.S. attorney’s office made the surprise move just hours before a hearing in front of Alexakis, where defense attorneys were expected to describe new texts from the Border Patrol agent who shot Martinez and discuss witnesses for an upcoming hearing over what the agent did with his vehicle after the Oct. 4 incident.

The new messages, which so far have not been revealed publicly, were ordered turned over to lawyers for Martinez this week after Alexakis viewed them in her chambers and determined

they were relevant to the case, court records show.

Martinez’s case is now the latest — and clearly highest-profile — criminal case against protesters of the Trump administration’s immigration-enforcement push to disintegrate at the Dirksen U.S. Courthouse.

In the past six weeks, a grand jury has refused to bring an indictment in one case, and charges have been dismissed in a handful of others.

Shortly before moving to dismiss the Martinez case Thursday morning, prosecutors

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Chicago Chief Financial Officer Jill Jaworski speaks while Mayor Brandon Johnson and his team meet with the Chicago Tribune Editorial Board on Oct. 28. **BRIAN CASSELLA/CHICAGO TRIBUNE**

Mayor’s plan to borrow money to pay police settlements raises questions

By Jake Sheridan
Chicago Tribune

Mayor Brandon Johnson wants to take out \$283 million in loans to pay for police settlements, but his plan has left aldermen wondering how a lot of the money will be spent.

The borrowing proposal revives a practice past mayors discontinued and derided as financially reckless. While members of the City Council

raise concerns and questions, Johnson’s team is defending the move as a way to finally clear a backlog of looming police misconduct lawsuits and save money.

“The Department of Law has been very focused on settling cases and lowering our costs by getting them settled quicker,” Johnson’s chief financial officer, Jill Jaworski, told aldermen Monday. “Instead of increasing those costs all in the budget

this year and spiking up our expenses, we’re spreading that out over a five year repayment period.”

The plan would spread the \$283 million in settlements over five years, starting in 2027 and ending in 2031. It would also force the city to pay an additional estimated \$42 million in interest, according to the Johnson administration.

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Trump slams video message from Dems

Lawmakers call on US military to defy any ‘illegal orders’

By Meg Kinnard
Associated Press

President Donald Trump accused half a dozen Democratic lawmakers Thursday of sedition “punishable by DEATH” after the lawmakers — all veterans of the armed services and intelligence community — called on U.S. military members to uphold the Constitution and defy “illegal orders.”

The 90-second video was first

posted early Tuesday from Michigan Sen. Elissa Slotkin’s X account. In it, the six lawmakers — Slotkin, Arizona Sen. Mark Kelly, and Reps. Jason Crow, Chris Deluzio, Maggie Goodlander and Chrissy Houlahan — speak directly to U.S. service members, whom Slotkin acknowledges are “under enormous stress and pressure right now.”

“The American people need you to stand up for our laws and our Constitution,” Slotkin wrote in the X post.

Trump reposted messages Thursday from others about the video, amplifying it with his own

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INSIDE

‘Wicked: For Good’ unable to defy gravity

Instead of transporting us to another world, the excess baggage and artifice in the “Wicked” sequel provide too much distraction. **A+E**

US, Russia draft Ukraine peace plan

Calls for major concessions from Kyiv, including granting some demands the Kremlin has made repeatedly. **Nation & World**



Ariana Grande, left, and Cynthia Erivo in “Wicked: For Good.” **GILES KEYTE/UNIVERSAL PICTURES**

